

LOREEN & LANE, LLC

d/b/a "The Retirement Answer Team"

NON-DISCLOSURE AND CONFIDENTIALITY AGREEMENT

Protecting Company Practices, Processes, Procedures & Proprietary Technology

This Non-Disclosure and Confidentiality Agreement ("Agreement") is entered into by and between Loreen & Lane, LLC, a New Mexico limited liability company d/b/a "The Retirement Answer Team" ("Company"), and the individual or entity identified below ("Recipient"). Company and Recipient may each be referred to as a "Party" and together as the "Parties."

Parties & Effective Date

Effective Date:

Recipient Full Legal Name:

Role/Relationship:

Agency/Company (if any):

Recipient Address:

Phone:

Email:

Recipient's role may include, without limitation, independent field agent, licensed producer, contractor, employee, vendor, consultant, or other business partner of Company. This Agreement applies regardless of whether Recipient's relationship with Company is later formalized in a separate agreement.

Recitals

Company has developed, through years of operation, a distinctive and proprietary way of running its Medicare, life, health, and ancillary insurance business — including how it recruits, trains, and manages field agents; how it engages, educates, and retains clients; how it structures its compliance and quality-control procedures; and how it selects, configures, and combines specific software platforms and technology tools to run those operations. Company considers this combination of practices, processes, procedures, and tools to be a trade secret and one of its most valuable business assets, separate and apart from any single practice or tool considered on its own.

In the course of Recipient's relationship with Company, Recipient may be given access to some or all of this information. Company is willing to share it only on the condition that Recipient agrees to the confidentiality obligations set out below.

Agreement

1. Purpose. This Agreement governs Recipient's access to, use of, and obligation to protect Company's Confidential Information (defined below), for as long as Recipient has a relationship with Company and after that relationship ends.
2. Confidential Information. "Confidential Information" means any non-public information disclosed by

Company to Recipient, in any form (written, oral, electronic, or observed), relating to Company's business, including without limitation:

- (a) Company's unique business practices, operational workflows, client engagement protocols, agent recruiting and training methodologies, compliance procedures, and internal standard operating procedures ("Company Practices, Processes & Procedures");
- (b) Company's proprietary selection, combination, configuration, and integration of software platforms, applications, automations, and technology tools used to operate the business — including but not limited to CRM, quoting, enrollment, artificial intelligence, and marketing systems, and the specific manner in which those systems are connected and used together (the "Tool Combination") — regardless of whether any individual tool, taken alone, is itself commercially or publicly available;
- (c) client and prospect lists, contact information, needs-assessment data, and household details;
- (d) marketing strategies, scripts, presentations, talking points, and content templates;
- (e) carrier relationships, appointment structures, commission and compensation arrangements;
- (f) financial information, business plans, budgets, and growth strategies; and
- (g) any other non-public information Company identifies as confidential or that a reasonable person would understand to be confidential given its nature and the circumstances of disclosure.

Recipient specifically acknowledges and agrees that the Company Practices, Processes & Procedures and the Tool Combination described in Sections 2(a) and 2(b), taken as a whole, constitute a unique and valuable trade secret of Company that is not to be shared, disclosed, replicated, or used outside of Recipient's work for Company, in whole or in part, under any circumstances without Company's prior written consent.

- 3. Exclusions. Confidential Information does not include information that: (a) was already lawfully known to Recipient, without an obligation of confidentiality, before Company disclosed it; (b) is or becomes generally available to the public through no fault of Recipient; (c) Recipient independently develops without using or referencing Confidential Information; or (d) Recipient is required to disclose by law, subpoena, or court order, provided Recipient gives Company prompt written notice and reasonably cooperates with any effort by Company to seek confidential treatment.
- 4. Recipient's Obligations. Recipient shall: (a) hold all Confidential Information in strict confidence and protect it using at least the same degree of care Recipient uses for its own confidential information, and no less than reasonable care; (b) use Confidential Information solely to perform Recipient's duties for Company; (c) not disclose Confidential Information to any third party without Company's prior written consent; (d) not use the Company Practices, Processes & Procedures or the Tool Combination, or any part of them, to build, operate, market, or assist any business that competes with Company, whether during or after Recipient's relationship with Company; and (e) limit access to Confidential Information to those with a legitimate need to know it in order to support Company's business.
- 5. No License or Ownership Rights. Nothing in this Agreement grants Recipient any right, title, license, or ownership interest in Company's Confidential Information, trade secrets, trademarks, brand assets, or proprietary systems, beyond the limited right to use them while actively performing services for Company.
- 6. Return or Destruction of Materials. Upon Company's request, or upon termination of Recipient's relationship with Company for any reason, Recipient shall promptly return to Company, or destroy and certify in writing the destruction of, all documents, files, and other materials (in any format) containing Confidential Information, and shall permanently delete any such information from personal devices,

accounts, and storage under Recipient's control.

7. **Term & Survival.** This Agreement is effective as of the Effective Date above and remains in effect for the duration of Recipient's relationship with Company and for five (5) years after that relationship ends. Notwithstanding the foregoing, Recipient's obligations with respect to any information that qualifies as a trade secret under applicable law — including the Company Practices, Processes & Procedures and the Tool Combination — survive for as long as that information remains a trade secret.
8. **Remedies.** Recipient acknowledges that any breach or threatened breach of this Agreement may cause Company immediate and irreparable harm for which monetary damages alone would not be an adequate remedy. Accordingly, in addition to any other remedies available at law or in equity, Company shall be entitled to seek injunctive and other equitable relief to prevent or curtail any actual or threatened breach, without the necessity of posting a bond, and to recover its reasonable costs and attorneys' fees incurred in enforcing this Agreement.
9. **No Employment or Agency Relationship.** Nothing in this Agreement, by itself, creates an employment, partnership, joint venture, or agency relationship between the Parties. Any such relationship must be established, if at all, in a separate written agreement.
10. **Governing Law; Venue.** This Agreement is governed by the laws of the State of New Mexico, without regard to its conflict-of-law principles. The Parties consent to the exclusive jurisdiction and venue of the state and federal courts located in Sandoval County, New Mexico for any dispute arising out of this Agreement.
11. **Entire Agreement; Amendment.** This Agreement constitutes the entire understanding between the Parties regarding its subject matter and supersedes all prior or contemporaneous discussions or agreements, written or oral, regarding that subject matter. It may be amended only by a written instrument signed by both Parties.
12. **Severability; Counterparts.** If any provision of this Agreement is held invalid or unenforceable, the remaining provisions remain in full force and effect, and the invalid or unenforceable provision shall be modified to the minimum extent necessary to make it enforceable while preserving its intent. This Agreement may be signed in counterparts, including electronically, each of which is deemed an original.

Signatures

By signing below, each Party agrees to the terms of this Agreement.

COMPANY

Loreen & Lane, LLC, d/b/a The Retirement Answer Team

Signature:

Name:

Title:

Date:

RECIPIENT

Signature:

Printed Name:

Title/Role:

Date:

This document is a template for internal use and does not constitute legal advice. Have it reviewed by a licensed New Mexico attorney before circulating it for signature, particularly alongside any separate independent-agent or producer agreement.